

SENATE BILL 2303

By Pody

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 57, Chapter 7; Title 63 and Title 67, Chapter
4, Part 10, relative to nitrous oxide.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, is amended by adding the following as a new part:

39-17-2001.

(a) Except as provided in § 39-17-2002, it is an offense to knowingly inhale, ingest, use, or possess any compound, liquid, gas, or chemical that contains nitrous oxide, commonly known as "laughing gas," and any amyl nitrite, commonly known as "poppers" or "snappers."

(b) A violation of this section is a Class A misdemeanor.

(c) A person who violates this section may, in the discretion of the trial court, be required to participate in an approved drug rehabilitation program as a condition of probation.

39-17-2002.

(a) Section 39-17-2001 does not apply to the possession and use of any compound, liquid, gas, or chemical that contains nitrous oxide:

(1) When prescribed as part of the care or treatment of a disease, condition, or injury by a licensed medical or dental practitioner;

(2) As part of a manufacturing process or industrial operation by a manufacturer;

(3) As a propellant in food preparation for a restaurant or food service; or

(4) For automotive purposes.

(b) The presence of additional flavoring in any compound, liquid, gas, or chemical that contains nitrous oxide or labeling on any part of a container of the substance referring to the contents being flavored creates a rebuttable presumption against the exceptions in subsection (a).

39-17-2003.

(a) Except as provided in § 39-17-2002, it is an offense for any person, entity, business, or corporation, including an online retailer, to produce, manufacture, possess, buy, sell, or otherwise transfer any compound, liquid, gas, or chemical that contains nitrous oxide for use in violation of § 39-17-2001 or to otherwise violate the provisions of this part.

(b)

(1) Any person, entity, business, or corporation that is certified, permitted, or licensed to do business in this state and found in violation of this part must have its certificate, permit, or license suspended for thirty (30) days upon the first violation.

(2) The certificate, permit, or license described in subdivision (b)(1) must be revoked upon a second violation.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.